

(2) This Act shall not apply in the case of the person who at the time of the passing of this Act holds the office of President of the Board of Trade, so long as he holds that office under his present appointment.

Short title.

2. This Act may be cited as the Board of Trade Act, 1909.

CHAPTER 24.

An Act to enable the Department of Agriculture and Technical Instruction for Ireland to undertake Prosecutions in certain cases under the Merchandise Marks Act, 1887. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Official prosecutions under 50 & 51 Vict. c. 28.

1.—(1) The Department of Agriculture and Technical Instruction for Ireland (in this Act referred to as “the Department”) may, with the concurrence of the Lord Chancellor of Ireland and of the Board of Trade, make regulations providing that, in cases which appear to the Department to relate to Irish agricultural produce, or to the produce of any other Irish rural industry, and to affect the general interests of the country, or of a section of the community, or of a trade, the prosecution in Ireland of offences under the Merchandise Marks Act, 1887, shall be undertaken by the Department, and prescribing the conditions on which such prosecutions are to be so undertaken.

50 & 51 Vict. c. 28.

(2) All regulations made under this section shall be laid before Parliament within three weeks after they are made if Parliament is then sitting, and if Parliament is not then sitting within three weeks after the beginning of the next session of Parliament, and shall have effect as if enacted by this Act.

(3) Nothing in this Act shall affect the power of any person or authority to undertake prosecutions otherwise than under the said regulations.

62 & 63 Vict. c. 50.

(4) In this section the expression “rural industries” means the rural industries mentioned in subsection one of section thirty of the Agriculture and Technical Instruction (Ireland) Act, 1890.

(5) The expenses of prosecutions undertaken by the Department in pursuance of this section shall be paid out of moneys provided by Parliament.

Extent and short title.

2. This Act shall apply to Ireland only, and may be cited as the Merchandise Marks (Ireland) Act, 1909.